

FIRST INFORMATION REPORT
(U/s 173 B.N.S.S.)

Book No. **1450**

Serial No. **002**

1. District: PS: Year: FIR No.: Date:
New Delhi CBI/ACB/New Delhi 2024 RC0032024A0050 21.12.2024

2. (1) Act - Bhartiya Nyay Sanhita Sections: 61(2)
(2) Act - PC Act 1988 Sections: 7
(as amended in 2018)
(3) Act - Sections:
(4) Other Acts & Sections-

3. (a) Suspected Offence- **Criminal Conspiracy, Demand of undue Advantage by public servant.**

(b) Day: Date: Time:

(c) Information received at PS: **CBI, ACB, New Delhi** Dated: **20.12.2024**

Entry No. **02** Date: **21.12.2024** Time: **08:45 A.M.**

4. Type of information – (Written / Oral): **Written**

5. Place of occurrence **Delhi**

(a) Direction & Distance from

Beat No. -

(b) Address:

(c) In case, outside the limit of this Police Station, then

Name of PS - District -

6. Complainant / Informant: credible source information

(a) Name : Sh. Ramesh Chawla

(b) Father's/Husband's Name : S/o Sh. Baldev Raj Chawla

(c) Date of Birth :

(d) Nationality : Indian

(e) Passport No. **NA** Date of Issue **NA** - Place of issue **NA**

(f) Profession : **Private Person**

(g) Address : **R/o- 2/215 Block-2, Subhash Nagar, Delhi**

7. Details of known/suspected/unknown accused with full particulars: -
(Attached separate sheet, if necessary)

1. **Shri Yogesh Yadav, Motor Vehicle Inspector, Transport Department, Delhi.**
2. **Shri Astrav Vajpayee, Motor Vehicle Inspector, Transport Department, Delhi.**

8. Reasons for delay in reporting by the complainant/informant: -

No delay

9. Particulars of properties Stolen (Attach separate sheet, if necessary):

10. Total value of property stolen: -

11. Inquest Report/U.D. Case No., if any,: -

12. First information contents (Attach separate sheet, if required):

A written complaint dated 20.12.2024 from Shri Ramesh Chawla, R/o-2/215 Block-2, Subhash Nagar, Delhi was received in office and copy thereof is enclosed herewith. The Complaint and subsequent verification report (enclosed) dated 20.12.2024 prima facie disclose commission of offences punishable under section 61(2) of Bhartiya Nyay Sanhita 2023 r/w section 7 of PC Act 1988 (as amended in 2018) on the part of Shri Yogesh Yadav and Shri Astrav Vajpayee, both Motor Vehicle Inspectors, Transport Department, Delhi.

Therefore, a regular case under section 61(2) of Bhartiya Nyay Sanhita 2023 r/w Section 7 of PC Act 1988 (as amended in 2018) has been registered against Shri Yogesh Yadav and Shri Astrav Vajpayee, both Motor Vehicle Inspectors, Transport Department, Delhi and entrusted to Sh. Durgadas, Inspector, CBI, ACB, New Delhi for investigation.

- सेवामे,

गी मान पुलिस अधिक्ताजी

CBI ACB दिल्ली - 110003

विषय:- नाम रखने के आधार पर MVI अस्तव वाजपति एवम
MVI योगेश यादव के द्वारा रिश्तेतकी मांग करने हेतु रिमायत
महोदय,

निवेदन है कि मैं रमेश चावला 2/0 बलदेव राज चावला R/o
2/215 ब्लॉक - 2 सुभाष नगर का निवासी हूँ। महोदय मैं पुर

रामपुरानी डाले रिकशा को खरीदने व बेचने का काम करता हूँ
और पुरानी डाले, रिकशा को स्क्रैप बनवा कर उसके आधार पर

नये डाले, रिकशा (CNG) बेचने का काम करता हूँ परन्तु
पिछले कुछ समय से डाले रिकशा थ्रीट डांग अण्डर हिलरों

राजपुर रेंज पर ② इन्सपेक्टर MVI अस्तव वाजपति व MVI
योगेश यादव आये हैं। जिनोंने मुझे प्रताड़ित करना शुरू कर

20/12/24 दिया है और मुझसे पैसे की डिमांड करते हैं कुछ समय पहले
मैंने अपनी कुछ गाड़ियों को फाइल ट्रान्सपोर्ट डिपार्टमेंट भाते

रिकशा थ्रीट के जगह पर हैं जिला में यह दोनो MVI अस्तव
वाजपति और MVI योगेश यादव ने उन फाइलों का काम करवाये जो

गाड़ी के डौनर से उनके घर (LOI) लेकर मोज दिया।

परन्तु अब मुझे वह दोनो इन्सपेक्टर MVI अस्त्रव बाजपड और
MVI प्रोगेडा जादव अलग अलग लोगो के धू मुझे यह मैसेज
मिलवा रहे के हमने तुम्हारी (13) फाइलो का काम लिया या जिसके
ले (1) फाइल के 1300 के डिमांड से $1300 \times 13 = 16900$ बनते है
वो पैसे हम दो नही तो तुम इस आरोपी के न हो ठा सक्ते हो और
ना ही तुम्हारी किसी भी गड़ि का कोई कार्य लिया जाउगा ।
महोदय मेरा आपसे अनुरोध है कि आप ऐसे अफट अधिकारियो के
बिनाफ लड़ा से लड़ा कार्यवाही करे । आपको आभिरुपा होगी ।


20/12/24
रमेश चवला

रमेश चवला

Dr. बलदेव राज चवला

8/02/25, बलाक - 2

कुमाय नगर, दिल्ली 110027

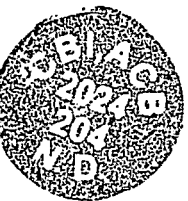
Verification Memo dated 20.12.2024 in
CO-94/2024 CBI/ACB/New Delhi

Today i.e. 20.12.2024, a complaint dated 20.12.2024 of Sh. Ramesh Chawla S/o Sh. Baldev Raj Chawla, R/o- 2/215 Block-2, Subhash Nagar, Delhi, address to SP CBI ACB Delhi, which further endorsed to myself, i.e. Dharam Bir, Inspector, CBI, ACB, New Delhi for verification. Sh. Om Prakash, SI, and Shashant Anand Jha, SI CBI ACB Delhi were also directed to assist in the verification. The presence of independent witness Sh. Upendra Kumar, (Emp. Code) 10000147 O/o the General Manager, NHAI plot no. G 5&6 sector 10 Dwarka, New Delhi was secured in through Duty Officer, CBI ACB Delhi. Above named team assembled at CBI ACB Delhi at about 11:40 Hrs on 20.12.2024, the complainant Sh. Ramesh Chawla and above independent witness were mutually introduced to each other and the purpose of assembly was explained to all signatories of this memo.

The complaint dated 20.12.2024 was shown and read over to all. After that the complainant was asked to narrate his grievance on which he narrated that Sh. Astrav Vajpayee and Sh. Yogesh Yadav both MVI, Transport Department, 5/9, Under hill Road, Delhi-54, are demanding bribe amount of Rs. 16900 @ Rs. 1300 per file for 13 files as reward for approving the Letter of Intent (LOI)/Files in connection with the selling purchasing of the Old CNG Autos.

In order to verify the allegations levelled in the complaint, a new memory card of 16 GB capacity and a new DVR (Sony made) were arranged. The memory card was taken out of its original packet in presence of independent witness. After explaining function of the DVR to the Complainant and the independent witness, the said memory card was inserted in the DVR. And after ensuring blankness of DVR and memory card, the introductory voice of the independent witness Sh. Upendra Kumar was recorded through DVR in the said memory card at about 12:05 PM.

Thereafter, it was decided to arrange the meeting between suspect persons and complainant. Accordingly, the CBI team along with complainant and independent witness left the office in the vehicle of the complainant for the spot i.e. office of Transport Department, Under Hill Road, Delhi.



Bm
20/12/24

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R. Prakash
20/12/24

Om Prakash
20.12.24

Shashant Anand Jha
20/12/2024

Upendra Kumar
20/12/24

Verification team along with independent witnesses and complainant reached in the area of Transport Department, Under Hill Road at about 12:40 Hours and parked the vehicle at safe distance. On the way, Complainant Sh. Ramesh Chawla was briefed that he should not offer bribe to suspect officers and the demand of bribe must come from the side of suspect officers, Independent witness, Upendra Kumar was also briefed to follow Sh. Ramesh Chawla and try to overhear the conversation which might have with suspect officers or any other person, by avoiding any suspicion.

At about 1250 hrs, the DVR in recording mode and on hold position was kept with Sh. Ramesh Chawla on person. Thereafter, he along with Upendra Kumar left for Transport Department office in his vehicle and remaining CBI team member remained in there and also inspected the area near by the said Transport Department Office.

Complainant along with independent witness came back to CBI team and assembled in the vehicle at about 1315 Hrs. Thereafter, The DVR was taken back from Sh. Ramesh and turned switched off.

Complainant Sh. Ramesh Chawla was asked to narrate the incident of events on which complainant narrated that after entering in the premises of the said office of Transport Department, he met with Astrav Vajpayee and had a conversation about his pending files on which he said that 13 files are pending with them and for that the complainant has to talk to Yogesh Yadav regarding the same. Further, Astrav Vajpayee told that Yogesh will be coming in around 30 minutes and he will have to meet Sh. Yogesh Yadav after that.

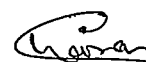
Accordingly, at about 1403 hrs, the DVR in recording mode and on hold position was kept with Sh. Ramesh Chawla on person. Thereafter, he along with Upendra Kumar left for Transport Department office in his vehicle to meet Sh. Yogesh Yadav.

Complainant along with independent witness came back to CBI team and assembled in his vehicle at about 1425 Hrs. Thereafter, The DVR was taken back from Sh. Ramesh and turned switched off.

On being asked the complainant narrated the incident of events. He narrated that he met in the office of Transport Department and met with Sh. Yogesh Yadav and Sh, Astrav Vajpayee and had brief conversation with them regarding the pending files/Letter of Intent(LOI). During said conversation he negotiated the demanded bribe amount with


20/12/24
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suspected persons. During said conversation Sh. Yogesh Yadav demanded bribe amount of Rs 13,200 @ Rs. 1200 per file for 11 files/Letter of intent (LOI). Further he narrated that Astrav Vajpayee was present there during the said conversation and Astrav Vajpyee told that the message was sent to him before 6 months and he(complainant) came to the office now.

Complainant further informed that Sh. Yogesh Yadav directed him to hand over the bribe amount to Sh. Shanu (Private Person).

The independent witness Sh. Upendra Kumar was asked to narrate the incident on which he states that he saw the complainant to enter in the office but he could not enter in the office as security persons were asking about purpose etc.

The recorded conversation was heard through DVR on the spot which corroborated the version of the complainant.

Thereafter verification team along with complainant and witness, left for office of CBI ACB Delhi and reached there at about 1945 hrs.

An investigation copy of the memory card used during verification has been prepared in computer/laptop with the help of write blocker. Then the said memory card was kept in its original packing. The said original packing along with memory card was kept in envelope. The said envelope was sealed with CBI Brass seal. The said original packing and envelope were marked as "Q-1 in CO-94/2024" signed by all the team members, complainant and witness.

The conversation held between the complainant and suspect persons, was heard on the computer through investigation copy of the memory card, was heard by all the team members.

In view of the above, prima facie demand of undue advantage of Rs. 13,200/- on behalf of Sh. Yogesh Yadav from the complainant was established and it is also established that Sh. Astrav Vajpayee has the knowledge of files/LOI and demand has been made in his presence. It is therefore, it is recommended to register a case against Sh. Yogesh Yadav and Sh. Astrav Vajpayee both Motor Vehicle Inspector, Transport Department, 5/9, Underhill Road, Delhi-54 under section 61 (2) BNS, 2023 r/w section 7 of PC act, 1988. (as amended in 2018) and substantive offences therewith for demanding undue advantage of Rs. 13,200/- from the complainant Sh. Ramesh Chawla as reward

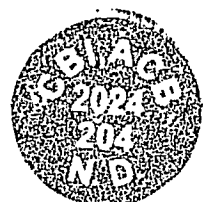
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Sh
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Q.1
20/12/24

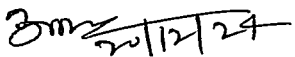
Amprabish
20/12/2024

Chawla
20.12.24

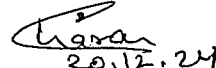


for approving/clearing his files/LOI in connection with selling/purchasing of old CNG Auto. The role and Sh. Shanu and other persons if any, may be ascertained during investigation.

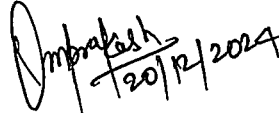
The verification memo has been prepared on official computer in the office of CBI ACB Delhi. The specimen seal impressions in ink as well as in lakh, of the CBI brass seal have been taken on some white papers and the same are signed by VO and independent witness. The impression of the CBI brass would be embossed on the each page of verification memo. The DVR and the CBI Brass seal is being handed over to the independent witness with direction to produce the same to the competent authority as and when required. The proceedings of verification is concluded peacefully at about 21:15 hrs.


Sh. Upendra Kumar,
Independent Witness


Sh. Ramesh Chawla,
Complainant

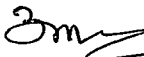

Dharam Bir,
Insp., CBI, ACB
New Delhi. Verification Officer


Shashant Anand Jha
Sub-Inspector, CBI, ACB, Delhi


Om Prakash
Sub-Inspector, CBI, ACB
New Delhi

One CBI brass seal & One DVR received on
20/12/24.




20/12/24
UPENDRA KUMAR
RA, NHAR

13. Action taken : Since the above information reveals commission of offence (s) u/s as mentioned at Item no. 2

(1) Registered the case and took up the investigation or

Regular Case is registered

(2) Directed (Name of IO): Rank: No. Took up for investigation

Shri Durgadas

Inspector, CBI, ACB, Delhi

(3) Refused investigation due to or

(4) Transferred to PS - District - on point of jurisdiction -

FIR read over to the complainant/informant, admitted to be correctly recorded and a copy given to the complainant/informant, free of cost.

R.O.A.C.

14. Signature/Thumb Impression of the complainant/informant


21/12/2024

Signature of Officer in-charge

Police Station:

Name: **Rajiv Kumar**

Rank: **Supdt. of Police**

CBI:ACB: Delhi

15. Date and time of dispatch to the Court

Signature of recording Officer with date